

VA REQUEST FOR LEASE PROPOSALS NO.

36C255-25-R-0004
Madison County, IL
(Edwardsville, IL)

Offers due by **1/30/2026**

In order to be considered for award, offers conforming to the requirements of the RLP shall be received no later than 4:30pm CST on the date above. See "Receipt Of Lease Proposals" herein for additional information.

***This RLP shall be set aside
for SDVOSB firms only**

This Request for Lease Proposals ("RLP") sets forth instructions and requirements for proposals for a Lease described in the RLP documents. Proposals conforming to the RLP requirements will be evaluated in accordance with the Method of Award set forth herein to select an Offeror for award. The Government will award the Lease to the selected Offeror, subject to the conditions herein.

The information collection requirements contained in this Solicitation/Contract, that are not required by regulation, have been approved by the Office of Management and Budget pursuant to the Paperwork Reduction Act and assigned the OMB Control No. 3090-0086.

**GLOBAL RLP
GSA TEMPLATE R100 (5/25)**

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REQUEST FOR LEASE PROPOSALS NO. 36C25525R0004

GLOBAL RLP GSA TEMPLATE R100 (MAY 2025)

SECTION 1 STATEMENT OF REQUIREMENTS

1.01 GENERAL INFORMATION (OCT 2023)

- A. This Request for Lease Proposals (RLP) sets forth instructions and requirements for proposals for a Lease described in the RLP documents. The Government will evaluate proposals conforming to the RLP requirements in accordance with the Method of Award set forth below to select an Offeror for award. The Government will award the Lease to the selected Offeror, subject to the conditions below.
- B. Included in the RLP documents is a lease template setting forth the lease term and other terms and conditions of the Lease contemplated by this RLP and a GSA Proposal to Lease Space (GSA Form 1364) on which Offeror shall submit its offered rent and other price data, together with required information and submissions. The Lease paragraph titled "Definitions and General Terms" shall apply to the terms of this RLP.
- C. Do not attempt to complete the lease template. Upon selection for award, VA will transcribe the successful Offeror's final offered rent and other price data included on the GSA Form 1364 into the lease and transmit the completed Lease, including any appropriate attachments, to the successful Offeror for execution. Neither the RLP nor any other part of an Offeror's proposal shall be part of the Lease except to the extent expressly incorporated therein. The Offeror should review the completed Lease for accuracy and consistency with his or her proposal, sign and date the first page, initial each subsequent page of the Lease, and return it to the Lease Contracting Officer (LCO).
- D. The Offeror's executed Lease shall constitute a firm offer. No Lease shall be formed until the LCO executes the Lease and delivers a signed copy to the Offeror.
- E. Offeror may not use Federal agency name(s) and/or acronym(s), e.g., General Services Administration, GSA, in the entity name that owns and/or leases the Space to GSA.

1.02 AMOUNT AND TYPE OF SPACE, LEASE TERM, AND OCCUPANCY DATE (OCT 2022)

- A. The Government is seeking a total of **25,313 RSF** (Rentable Square Feet) yielding **18,750 ABOA** (American National Standards Institute/Building Owners and Managers Association) of contiguous space within the Area of Consideration set forth below. See Section 2 of the Lease for applicable ANSI/BOMA standards.
- B. The Space shall be located in a modern quality Building of sound and substantial construction with a facade of stone, marble, brick, stainless steel, aluminum or other permanent materials in good condition and acceptable to the LCO. If not a new Building, the Space offered shall be in a Building that has undergone, or will complete by occupancy, modernization or adaptive reuse for the Space with modern conveniences.
- C. The Government requires **0** structured/inside parking spaces and **100** surface/outside parking spaces, reserved for the exclusive use of the Government. These spaces must be secured and lit in accordance with the Security Requirements set forth in the Lease. Offeror shall include the cost of this parking as part of the rental consideration.
- D. As part of the rental consideration, the Government may require use of part of the Building roof for the installation of antenna(s). If antenna space is required, specifications regarding the type of antenna(s) and mounting requirements are included in the agency requirements information provided with this RLP.
- E. Approximately **250** ABOA SF will be used for the operation of a vending facility under the provisions of the Randolph-Sheppard Act (20 USC 107 et. seq.). The Government will control the number, kind, and locations of vending facilities and will control and receive income from all automatic vending machines. Offeror shall provide necessary utilities and make related alterations. The cost of the improvements is part of Tenant Improvement (TI) costs. The Government will not compete with other facilities having exclusive rights in the Building. The Offeror shall advise the Government if such rights exist.
- F. The lease term shall be **10** Years Total (**10** Years Firm). The Government reserves the right in the Lease to not include an option, or to reduce the length of an option, if inclusion of the option would cause the Lease to score as a capital lease, in accordance with the Budget Scorekeeping: Operating Lease Treatment paragraph of this RLP. Should the Government make the determination to modify the term or option(s), an amendment to the RLP will be issued.
- G. The Lease Term Commencement Date will be on or about **October 1, 2027**, or upon acceptance of the Space, whichever is later.

1.03 AREA OF CONSIDERATION (OCT 2021)

The Government requests Space in an area bounded as follows:

North: _Highway 140_
South: _I-270/70_
East: _IL Route 4_
West: _I-255_

Buildings with Property boundary(ies) on the boundary streets are deemed to be within the delineated Area of Consideration.

1.04 UNIQUE REQUIREMENTS (OCT 2021)

The offered Building and/or Property must have the following features as a minimum requirement:

- A. Refer to Exhibit A.1- Agency Specific Requirements_____
- B. Refer to Exhibit A.2- Program for Design Room Contents
- C. Refer to Exhibit A.3- Room Data Matrix
- D. Refer to Exhibit A.4- Infrastructure Standard for Telecommunication Spaces
- E. Refer to Exhibit B.1- FSL 2 Security Requirements

1.05 NEIGHBORHOOD, PARKING, LOCATION AMENITIES, AND PUBLIC TRANSPORTATION (MAY 2025)

- A. Neighborhood and Parking. Inside City Center: Space shall be located in a prime commercial office district with attractive, prestigious, and professional surroundings with a prevalence of modern design and/or tasteful rehabilitation in modern use. Streets and public sidewalks shall be well maintained. Parking facilities with an adequate availability of parking spaces open to the general public to accommodate employees and visitors shall be located within the immediate vicinity of the building but generally not exceeding a walkable **.5 miles (2,640 feet)** (RECOMMENDED: 2,640 feet) of the employee entrance of the offered Building as determined by the VA. These parking facilities do not substitute for the required parking under Paragraph 1.02(C).
- B. Neighborhood and Parking. Outside City Center: Space shall be located 1) in an office, research, technology, or business park that is modern in design with a campus-like atmosphere; or, 2) on an attractively landscaped site containing one or more modern office Buildings that are professional and prestigious in appearance with the surrounding development well maintained and in consonance with a professional image. The parking-to-square-foot ratio available onsite shall at least meet current local code requirements, or, in the absence of a local code requirement, onsite parking shall meet the minimum requirement, which is 100 parking spaces.
- C. Walkability and Amenities:
 - a. Employee and visitor entrances of the Building must be connected to public sidewalks by continuous, accessible sidewalks.
 - b. A variety of employee services, such as restaurants, retail shops, cleaners, and banks, shall be located within the immediate vicinity of the Building. To be considered, amenities must be accessible from the Building by continuous sidewalks, walkways, or pedestrian crosswalks. Amenities must be existing or the Offeror must demonstrate to the Government's reasonable satisfaction that such amenities will exist by the Government's required occupancy date.

D. Transit Accessibility. A bus transit stop/public transportation shall be located within the immediate vicinity of the Building, but generally not exceeding a safely accessible, walkable .5 mile (2,650 feet) from the principal functional entrance of the Building, as determined by the VA.

1.06 LIST OF RLP DOCUMENTS (OCT 2024)

- A. The following documents are attached to and included as part of this RLP package:

Document Name	No. of Pages	Exhibit
Lease No. 36C25525L0002 (L100) (Rev May 2025)	50	
Agency Specific Requirements	26	A.1
Program for Design/Room Contents List	37	A.2
Room Data Matrix	Excel	A.3
Infrastructure Standard for Telecommunication Spaces (V 4.0)	191	A.4
FSL 2 Security Requirements (Rev Jan. 2024)	10	B.1
Security Unit Price List for FSL 2 (Rev. June. 2022)	2	B.2
GSA 1364, Proposal to Lease Space (Rev. Jan. 2023)	4	C.1
GSA 1217, Lessors Annual Cost Statement (Rev. Nov. 2016)	3	C.2

Tenant Improvement Unit Price List	Excel doc	C.3
DOL Wage Determination IL20250007 12-12-2025	14	C.4
GSA 12000 Prelease Fire Life Safety (Rev. May 2011)	7	D.1
Seismic Safety Forms (Rev. Sept. 2012)	10	D.2
GSA 3517B General Clauses (Rev. Feb 2025)	23	E.1
GSA 3516 Solicitation Provisions (Rev. Feb 2025)	7	E.2

- B. In addition to the documents identified above, this RLP package includes additional agency requirements containing sensitive information that is only available to Offerors upon request to the LCO or Alternate Government Contact as listed under Section 1 of this RLP.

1.07 AMENDMENTS TO THE RLP (JUN 2012)

This RLP may be amended by notice from the LCO. Amendments may modify the terms of this RLP, or the terms, conditions, and requirements of the Lease contemplated by the RLP.

1.08 LEASE DESCRIPTION (MAY 2025)

- A. Offeror shall examine the Lease template included in the RLP documents to understand the Government's and the Lessor's respective rights and responsibilities under the contemplated Lease.

- B. The Lease contemplated by this RLP includes:

1. The term of the Lease, and renewal option, if any.
2. Terms and Conditions of the Lease, including Definitions, Standards, and Formulas applicable to the Lease and this RLP.
3. Building Shell standards and requirements.
4. Information concerning the tenant agency's buildout requirements, which can be found within the Exhibits attached hereto.
5. Space Plan and equipment requirements found within Exhibit titled "Program for Design- Room Contents".
6. Security Requirements found within FSL 2 Security Requirements and Security Unit Price List.
7. Telecommunication/OIT related requirements, which can be found within the Infrastructure Standard for Telecommunication Spaces.
8. Seismic Requirements
9. A description of all services to be provided by the Lessor.

- C. Should the Offeror be awarded the Lease, the terms of the Lease shall be binding upon the Lessor without regard to any statements contained in this RLP.

- D. The Lease contemplated by this RLP is a fully serviced, turnkey Lease with rent that covers all Lessor costs, including all shell upgrades, TIs, operating costs, real estate taxes, and security upgrades. Rent shall be based upon a proposed rental rate per Rentable Square Foot (RSF), limited by the offered rate and the maximum ABOA SF solicited under this RLP. The Tenant Improvements to be delivered by the Lessor shall be based upon information provided with this RLP and Lease, including Agency Specific Requirements (ASR). The Lessor shall design and build the TIs and will be compensated for the TI costs based upon turnkey pricing established under the Lease.

After award, the Lessor must prepare Design Intent Drawings (DIDs) for the leased Space conforming to the Agency Specific Requirements. The Government will have the opportunity to review the Lessor's DIDs to determine that the Lessor's design meets the requirements of the Lease. Only after the Government approves the DIDs will the Lessor be released to proceed with buildout. The Lease also provides that the Government may modify the TI requirements, subject to the Lessor's right to receive compensation for such changes.

- E. The security pricing process is described in Section 1.10 below.
- F. Upon completion and acceptance of the leased Space, the Space will be measured for establishing the actual annual rent, and the lease term shall commence. In instances involving an incumbent Lessor where the Government commences the lease term pending completion of TI and/or BSAC alterations, the Government shall withhold TI and/or BSAC rent pursuant to Section 1 of the Lease until such time as the TI and/or BSAC is completed and inspected/accepted by the Government. During the term of the Lease, rent will be adjusted for changes to the Lessor's operating costs and real estate taxes, pursuant to paragraphs set forth in the Lease.
- G. Offerors are advised that doing business with the Government carries special responsibilities with respect to sustainability, fire protection and life safety, and security, as well as other requirements not typically found in private commercial leases. These are set forth both in the lease template and in the GSA 3517B, General Clauses, and will be made part of the Lease.

1.09 RELATIONSHIP OF RLP BUILDING MINIMUM REQUIREMENTS AND LEASE OBLIGATIONS (OCT 2016)

The Lease establishes various requirements relating to the building shell. Such requirements are not deemed TIs. There are certain Building requirements that are established as minimum requirements in this RLP. If the Lessor's Building does not meet the requirements at the time of award, the Lessor may still be awarded the Lease. However, as a condition of award, the Government will require Lessor to identify those Building improvements that will bring the building into compliance with RLP requirements. Upon award of the Lease, completion of those Building improvements will become Lease obligations.

1.10 PRICING OF SECURITY REQUIREMENTS (OCT 2022)

- A. The proposed Lease contains an Exhibit titled "FSL 2 Security Requirements" that contains the security requirements and obligations for the building, which are based on the facility security level (FSL) determined by the VA Police. The Federal Government determines the facility's FSL rating, which ranges from FSL I to FSL IV. The FSL is based on client agency mix, required size of space, number of employees, use of the space, location, configuration of the site and lot, and public access into and around the facility. The FSL for this new/replacing lease shall be FSL 2.
- B. The FSL 2 security requirements Exhibit attached to this RLP and Lease includes a general list of countermeasures that shall be installed in the leased Space as part of the Building Specific Amortized Capital (BSAC). The Security Unit Price List shall be completed and submitted by offeror, as part of the offeror's proposal, based on costs of all security requirements stated within the FSL 2 Security Requirements Exhibit. The Lessor shall design and build the BSAC and will be compensated for BSAC costs, together with design and project management fees to be set under the Lease. BSAC shall be paid along with the tenant improvements upon successful completion, inspection, and approval by the VA.
- C. There shall be no charge to the Government for any items that already exist in the offered Building or facility.

1.11 SECURITY LEVEL DETERMINATION FOR FACILITY HOUSING OTHER FEDERAL TENANTS (APR 2011)

If an Offeror is offering Space in a facility currently housing a Federal agency, the security requirements of the facility may be increased and the Offeror may be required to adhere to a higher security standard than other Offerors competing for the same space requirement. If two or more Federal space requirements are being competed at the same time, an Offeror submitting on both or more space requirements may be subject to a higher security standard if the Offeror is determined to be the successful Offeror on more than one space requirement. It is incumbent upon the Offeror to prepare the Offeror's proposal accordingly.

1.12 AUTHORIZED REPRESENTATIVES (OCT 2020)

With respect to all matters relating to this RLP, only the Government's LCO designated below shall have the authority to amend the RLP and award a Lease. The Government shall have the right to substitute its LCO by notice, without an express delegation by the prior LCO.

Lease LCO:

[Name] MELISSA BRAU
[Cell Phone] (816) 627-9687
[Email Address] MELISSA.BRAU@VA.GOV

1.13 ~~BROKER COMMISSION AND COMMISSION CREDIT (OCT 2020)~~ INTENTIONALLY DELETED

1.14 NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE AND SMALL BUSINESS SIZE STANDARD (OCT 2023)

- A. The North American Industry Classification System (NAICS) code for this acquisition is 531120 (Exception).
- B. The small business size standard for the applicable NAICS code is found [HTTPS://WWW.SBA.GOV/SIZE-STANDARDS/](https://www.sba.gov/size-standards/).

SECTION 2 ELIGIBILITY AND PREFERENCES FOR AWARD

2.01 EFFICIENCY OF LAYOUT (AUG 2011)

- A. In order to be acceptable for award, the offered Space must provide for an efficient layout that meets the PACT space design guide for a Community Based Outpatient Clinic. Offeror shall refer to Exhibit A.1 Agency Specific Requirements for further details and a direct link to the PACT space design guide found on the VA TIL.
- B. To demonstrate potential for efficient layout, GSA may request the Offeror to provide a test fit layout at the Offeror's expense. The Government will advise the Offeror if the test fit layout demonstrates that the Government's requirement cannot be accommodated within the Space offered. The Offeror will have the option of increasing the ABOA square footage offered, if it does not exceed the maximum ABOA square footage in this RLP offer package. If the Offeror is already providing the maximum ABOA square footage and cannot house the Government's space requirements efficiently, then the Government will advise the Offeror that the offer is unacceptable.

2.02 FLOODPLAINS (OCT 2022)

A Lease will not be awarded for any offered Property located within a 1-percent-annual-chance floodplain (formerly referred to as 100-year floodplain) unless the Government has determined that there is no practicable alternative. An Offeror may offer less than its entire site in order to exclude a portion of the site that falls within a floodplain, so long as the portion offered meets all the requirements of this RLP and does not impact the Government's full use and enjoyment of the Premises. If an Offeror intends that the offered Property that will become the Premises for purposes of this Lease will be something other than the entire site as recorded in tax or other property records the Offeror shall clearly demarcate the offered Property on its site plan/map submissions and shall propose an adjustment to property taxes on an appropriate pro rata basis. For such an offer, the Government may determine that the offered Property does not adequately avoid development in a 1-percent-annual-chance floodplain.

In addition, a Lease will not be awarded for any offered Property adjacent to a 1-percent-annual-chance floodplain, where such an adjacency would, as determined by the Government, restrict ingress or egress to the Premises in the event of a flood, unless there is no practicable alternative.

2.03 SEISMIC SAFETY – HIGH SEISMICITY (MAY 2025)

In accordance with the Earthquake Hazards Reduction Act of 1977, the following apply:

- A. The Government intends to award a Lease to an Offeror of a Building that is in compliance with the Seismic Standards. If an offer is received which is in compliance with the Seismic Standards and the other requirements of this RLP, then other offers which do not comply with the Seismic Standards must not be considered. If none of the offers is in compliance with the Standards, the LCO will make the award to the Offeror whose offer meets the other requirements of this RLP and provides the best value to the Government, taking into account price, seismic safety and any other evaluation factors specified in this RLP.
- B. An offered Building will be considered to be in compliance with the Seismic Standards if it meets one of the following conditions:
1. The offer includes a representation that the Premises will be in a one-story Building of steel light frame or wood construction with less than 3,000 ABOA SF of space in the Building (Seismic Form D).
 2. The offer includes a Seismic Certificate certifying that the Building is a Benchmark Building (Seismic Form A).
 3. The offer includes a Seismic Certificate based on a Tier I Evaluation showing that the Building meets the Seismic Standards (Seismic Form B). The submission must include the checklists and backup calculations from the Tier 1 Evaluation.
 4. The offer includes a Seismic Certificate based on a Tier 2 or Tier 3 Evaluation showing that the Building complies with the Seismic Standards (Seismic Form B). If the certificate is based on a Tier 2 or Tier 3 Evaluation, the data, working papers, calculations and reports from the evaluation must be made available to the Government.
 5. The offer includes a commitment to retrofit the Building to satisfy all of the Basic Safety Objective requirements of ASCE/SEI 41 (Seismic Form C, Part 1). If the Offeror proposes to retrofit the Building, the offer must include a Tier 1 report with all supporting documents, a narrative explaining the process and scope of retrofit and a schedule for the seismic retrofit. The Offeror shall provide a construction schedule, concept design for the seismic upgrade and supporting documents for the retrofit, including structural calculations, drawings, specifications, and geotechnical report to the Government for review and approval prior to award. The documentation must demonstrate the seismic retrofit will meet the seismic standards and be completed within the time frame required.
 6. The offer includes a pre-award commitment to construct a new Building, using local building codes (Seismic Form C, Part 2).
- C. The LCO may allow an Offeror to submit a Seismic Certificate after the deadline for final proposal revisions. However, the LCO is not obligated to delay award in order to enable an Offeror to submit a Seismic Certificate.
- D. Definitions. For the purpose of this paragraph:

1. "ASCE/SEI 31" means the American Society of Civil Engineers standard, Seismic Evaluation of Existing Buildings. You can purchase ASCE/SEI from ASCE at (800) 548-2723 or by visiting [HTTP://WWW.ASCE.ORG/PUBLICATIONS/](http://www.asce.org/publications/).
2. "ASCE/SEI 41" means American Society of Civil Engineers standard, Seismic Rehabilitation of Existing Buildings. You can purchase ASCE/SEI from ASCE at (800) 548-2723 or by visiting [HTTP://WWW.ASCE.ORG/PUBLICATIONS/](http://www.asce.org/publications/).
3. "Benchmark Building" means a building that was designed and built, or retrofitted, in accordance with the seismic provisions of the applicable codes specified in Section 1.3.1 of RP 8.
4. "Engineer" means a professional engineer who is licensed in Civil or Structural Engineering and qualified in the structural design of buildings. They must be licensed in the state where the property is located.
5. "RP 8" means "Standards of Seismic Safety for Existing Federally Owned and Leased Buildings ICSSC Recommended Practice 8 (RP 8)," issued by the Interagency Committee on Seismic Safety in Construction as ICSSC RP 8 and the National Institute of Standards and Technology as NIST GCR 11-917-12. RP 8 can be obtained from [HTTPS://WWW.NIST.GOV/PUBLICATIONS/](https://www.nist.gov/publications/).
6. "Seismic Certificate" means a certificate executed and stamped by an Engineer on the appropriate Certificate of Seismic Compliance form included with this RLP together with any required attachments.
7. "Seismic Standards" means the requirements of RP 8 Section 2.2 for Life Safety Performance Level in ASCE/SEI 31 or the Basic Safety Objective in ASCE/SEI 41, unless otherwise specified.
8. "Tier 1 Evaluation" means an evaluation by an Engineer in accordance with Chapters 2.0 and 3.0 of ASCE/SEI 31. A Tier 1 Evaluation must include the appropriate Structural, Nonstructural and Geologic Site Hazards and Foundation Checklists.
9. "Tier 2 Evaluation" means an evaluation by an Engineer in accordance with Chapter 4.0 of ASCE/SEI 31.
10. "Tier 3 Evaluation" means an evaluation by an Engineer in accordance with Chapter 5.0 of ASCE/SEI 31.

2.04 ASBESTOS (MAY 2025)

- A. The Government requires space with no asbestos-containing materials (ACM), or with undamaged, nonfriable ACM. For purposes of this paragraph, "space" includes the 1) space offered for lease; 2) common building area; 3) ventilation systems and zones serving the space offered; and 4) the area above suspended ceilings and engineering space in the same ventilation zone as the space offered. Notwithstanding the preceding, if no offers are received for such space, the Government may consider space with thermal system insulation ACM (e.g., wrapped pipe or boiler lagging), which is not damaged or subject to damage by routine operations.
- B. ACM is defined as any material with a trace or more of asbestos quantity present.
- C. Space with ACM of any type or condition may be upgraded by the Offeror to meet conditions described in sub-paragraph A by abatement (removal, enclosure, encapsulation, or repair) of ACM not meeting those conditions. If any offer involving abatement of ACM is accepted by the Government, the successful Offeror will be required to successfully complete the abatement in accordance with OSHA (29 CFR § 1910.1001, 29 CFR § 1926.1101), EPA (40 CFR Part 61 - National Emission Standards for Hazardous Air Pollutants and Part 763), state, and local regulations and guidance prior to occupancy.
- D. Management Plan and Reinspection Report Submittals. If space is offered which contains ACM, the Offeror shall submit a current asbestos-related management plan or operations and maintenance plan, along with a current asbestos re-inspection report (performed within the past 5 years) that includes a list of all ACM and their condition for acceptance by the Government prior to lease award. The management plan or operations and maintenance plan, and re-inspection report shall conform to generally accepted industry practice in accordance with OSHA (29 CFR § 1910.1001, 29 CFR § 1926.1101), EPA (40 CFR Part 61 - National Emission Standards for Hazardous Air Pollutants and Part 763).
- E. The Government reserves the right to review Offeror's existing records for compliance.

2.05 ACCESSIBILITY (SEP 2013)

The Lease contemplated by this RLP contains requirements for Accessibility. In order to be eligible for award, Offeror must either:

- A. Verify in the Lease proposal that the building, offered Space, and areas serving the offered Space meet the Lease accessibility requirements, or
- B. Include as a specific obligation in its Lease proposal that improvements to bring the building, offered Space, and areas serving the offered Space into compliance with Lease accessibility requirements will be completed prior to acceptance of the Space.

2.06 FIRE PROTECTION AND LIFE SAFETY (SEP 2013)

The Lease contemplated by this RLP contains Building requirements for Means of Egress, Automatic Fire Sprinkler System, and Fire Alarm System. In order to be eligible for award, Offeror must either:

- A. Verify in the Lease proposal that the Building in which Space is offered meets the Means of Egress, Automatic Fire Sprinkler System, and Fire Alarm System requirements of the Lease; or
- B. Include as a specific obligation in its Lease proposal that improvements to bring the Building into compliance with Lease requirements will be completed prior to acceptance of the Space.

2.07 ENERGY INDEPENDENCE AND SECURITY ACT (MAY 2025)

- A. The Energy Independence and Security Act (EISA) establishes requirements for Government leases relating to energy efficiency standards and potential cost-effective energy efficiency and conservation improvements.
- B. Subject to the exceptions below, unless one of the statutory exceptions listed in sub-paragraph C below applies, GSA may award a lease for a Building only if the Building has earned the ENERGY STAR® label conferred by the U.S. Environmental Protection Agency (EPA) within the most recent year prior to the due date for final proposal revisions. The term "most recent year" means that the date of award of the ENERGY STAR® label by EPA must not be more than 1 year prior to the due date of final proposal revisions. For example, an ENERGY STAR® label awarded by EPA on October 1, 2023, is valid for all lease procurements where final proposal revisions are due on or before September 30, 2024. Notwithstanding the above, buildings that meet any of the following are considered as equivalent to having an Energy Star label in the most recent year, provided they achieve an ENERGY STAR® label within 18 months after occupancy by the Government:
 - 1. All new Buildings being specifically constructed for the Government, provided they achieve an ENERGY STAR® label within 18 months after occupancy by the Government, and received the "Designed to Earn the Energy Star®" certification prior to construction;
 - 2. All existing Buildings that have had an Energy Star® label but are unable to obtain a label in the most recent year (i.e., within 12 months prior to the due date for final proposal revisions) because of insufficient occupancy;
 - 3. Newly built Buildings that have used Energy® Star's Target Finder tool and either achieved a "Designed to Earn the Energy Star®" certification or received an unofficial score (in strict adherence to Target Finder's usage instructions, including the use of required energy modeling) of 75 or higher prior to the due date for final proposal revisions and who are unable to obtain a label in the most recent year because of insufficient occupancy; or
 - 4. An existing Building that is unable to obtain a label because of insufficient occupancy but that can produce an indication, through the use of energy modeling or past utility and occupancy data input into Energy Star's® Portfolio Manager tool or Target Finder, that it can receive an unofficial score of 75 or higher using all other requirements of Target Finder or Portfolio Manager, except for actual data from the most recent year.
- C. Subject to subparagraph D below, EISA allows a Federal agency to lease Space in a Building that does not have an ENERGY STAR® Label if:
 - 1. No Space is offered in a Building with an ENERGY STAR® Label that meets RLP requirements, including locational needs;
 - 2. The agency will remain in a Building it currently occupies;
 - 3. The Lease will be in a Building of historical, architectural, or cultural significance listed or eligible to be listed on the National Register of Historic Places; or
 - 4. The Lease is for 10,000 RSF or less.
- D. If one or more of the statutory exceptions applies, and the offered Space is not in a Building that has earned the ENERGY STAR® Label within one year prior to the due date for final proposal revisions, Offerors are required to include in their lease proposal an agreement to renovate the Building for all energy efficiency and conservation improvements that it has determined would be cost effective over the Firm Term of the Lease, if any, prior to acceptance of the Space (or not later than one year after the Lease Award Date of a succeeding or superseding lease). Such improvements may consist of, but are not limited to, the following:
 - 1. Heating, Ventilating, and Air Conditioning (HVAC) upgrades, including boilers, chillers, and Building Automation System (BAS) /Monitoring/Control System (EMCS).
 - 2. Lighting Improvements.
 - 3. Building Envelope Modifications.
- E. The term "cost effective" means an improvement that will result in substantial operational cost savings to the landlord by reducing electricity or fossil fuel consumption, water, or other utility costs. The term "operational cost savings" means a reduction in operational costs to the landlord through the application of Building improvements that achieve cost savings over the Firm Term of the Lease sufficient to pay the incremental additional costs of making the Building improvements.

- F. Instructions for obtaining an ENERGY STAR® Label are provided at [HTTP://WWW.ENERGYSTAR.GOV/BUILDINGS/FACILITY-OWNERS-AND-MANAGERS/EXISTING-BUILDINGS/EARN-RECOGNITION/](http://www.energystar.gov/buildings/facility-owners-and-managers/existing-buildings/earn-recognition/) (use "Portfolio Manager" to apply). The ENERGY STAR® Building Upgrade Manual ([HTTP://WWW.ENERGYSTAR.GOV/BUILDINGS/FACILITY-OWNERS-AND-MANAGERS/EXISTING-BUILDINGS/SAVE-ENERGY/](http://www.energystar.gov/buildings/facility-owners-and-managers/existing-buildings/save-energy/)) and Building Upgrade Value Calculator ([HTTP://WWW.ENERGYSTAR.GOV/BUILDINGS/TOOLS-AND-RESOURCES/BUILDING-UPGRADE-VALUE-CALCULATOR](http://www.energystar.gov/buildings/tools-and-resources/building-upgrade-value-calculator/)) are tools which can be useful in considering energy efficiency and conservation improvements to Buildings.
- G. If one or more of the statutory exceptions applies, and the offered Space is not in a Building that has earned the ENERGY STAR® Label within one year prior to the due date for final proposal revisions, the successful Offeror will be excused from performing any agreed-to energy efficiency and conservation renovations, and benchmarking with public disclosure (as provided in (I) below, if it obtains the ENERGY STAR® Label prior to the Government's acceptance of the Space (or not later than one year after the Lease Award Date for succeeding and superseding leases).
- H. If no improvements are proposed, the Offeror must demonstrate to the Government using the ENERGY STAR® Online Tools why no energy efficiency and conservation improvements are cost effective. If such explanation is unreasonable, the offer may be rejected.
- I. As described in Section 3 of the Lease, successful Offerors meeting one of the statutory exceptions above must agree to benchmark and publicly disclose the Building's current ENERGY STAR® score, using EPA's Portfolio Manager online software application. See the Lease for additional details.
- J. All new Buildings being specifically constructed for the Government must achieve the ENERGY STAR® Label within 18 months after occupancy by the Government.
- K. As part of the cost effective upgrades specified under sub-paragraph D above, existing lighting systems must be upgraded to meet or exceed the stated lighting specifications in the Lease unless, with respect to upgrades otherwise in excess of the minimum stated requirements, Offeror can demonstrate, using the Building Upgrade Value Calculator discussed above, that such additional upgrades are not cost effective over the Firm Term of the Lease.

2.08 ENVIRONMENTAL CONSIDERATIONS (SEP 2013)

- A. The Government requests space with no known hazardous conditions or recognized environmental conditions that would pose a health and safety risk or environmental liability to the Government.
- B. Upon request by the Government, Offeror must provide all known previous use of the building.
- C. Offeror must indicate in its written offer any known hazardous conditions or environmental releases with/from the offered Space, Building or Property.

2.09 DUE DILIGENCE AND NATIONAL ENVIRONMENTAL POLICY ACT REQUIREMENTS - RLP (OCT 2023)

- A. Environmental Due Diligence.
 - 1. At the direction of the LCO, the Offeror must provide, at the Offeror's sole cost and expense, a current Phase I Environmental Site Assessment (ESA), using the American Society for Testing and Materials (ASTM) Standard E1527-21 and timeline, as such standard may be revised from time to time. In accordance with ASTM standards, the study must be performed by an environmental professional with qualifications that meet ASTM standards. This Phase I ESA must be prepared with a focus on the Government being the "user" of the Phase I, as the term "user" is defined in E1527-21. Failure to submit the required study may result in dismissal from consideration.
 - 2. If the Phase I ESA identifies any recognized environmental conditions (RECs), the Offeror will be responsible for addressing such RECs, at its sole cost and expense, including performing any necessary Phase II ESA (using ASTM Standard E1903-11), performing any necessary cleanup actions in accordance with federal and state standards and requirements and submitting a proposed schedule for complying with these obligations. The Government will evaluate whether the nature of any of the RECs, the results of the Phase II, any completed cleanup, and the proposed schedule meet the Government's needs.
- B. National Environmental Policy Act.
 - 1. While the Offeror is responsible for performing all environmental due diligence studies of the offered Property, the Government is responsible for compliance with NEPA, whether in whole or in part, on its own or with the assistance of the Offerors. NEPA requires federal agencies to consider the effects of their actions on the quality of the human environment as part of the federal decision-making process and, to that end, the Government's obligations may, and in some cases will, be augmented by the Offerors as described in greater detail in the RLP.
 - 2. The Government may either request information from the Offerors to help it meet its obligations under NEPA or share information provided in response to this provision with federal, state and local regulatory agencies as part of its compliance responsibilities under NEPA and other applicable federal, state and local environmental laws and regulations. Further consultation with these regulatory agencies may be necessary as part of the NEPA process.
 - 3. The Offerors are advised that the Government may be required to release the location of each offered site and other building specific information in public hearings or in public NEPA documents. By submitting an offer in response to this RLP and without the need for any further documentation, the Offeror acknowledges and consents to such release.

4. The Government reserves the right to reject any offer where (i) the NEPA-related documentation provided by the Offeror for the offered Property is inadequate, (ii) the offer entails unacceptably adverse impacts on the human environment, (iii) the identified adverse impacts cannot be readily mitigated, or (iv) the level of NEPA analysis is more extensive than is acceptable to the Government.
5. An Offeror must allow the Government access to the offered Property to conduct studies in furtherance of NEPA compliance. This requires research and field surveys to assess the potential impacts to the natural, social and cultural environments. Any recent studies previously conducted by the Offeror may be submitted to be included in the NEPA process.
6. The Government will not proceed with Lease award until the NEPA process is complete as evidenced by the Government's issuance of a completed CATEX, EA or Environmental Impact Statement (EIS). Upon Lease award, any mitigation measures, whether optional or mandatory, identified and adopted by the Government will become Lease obligations. All costs and expenses for development of design alternatives, mitigation measures and review submittals for work to be performed under the Lease will be the sole responsibility of Lessor.

2.10 NATIONAL HISTORIC PRESERVATION ACT REQUIREMENTS - RLP (OCT 2023)

- A. The Government is responsible for complying with section 106 of the National Historic Preservation Act of 1966, as amended, 54 U.S.C. § 306108 (Section 106). Section 106 requires federal agencies to consider the effects of their actions on historic properties prior to expending any federal funds on the undertaking. The Government is responsible for identifying whether any historic properties exist in, on, under, or near the offered Property that could be affected by the leasing action. Historic properties include both above-grade (*i.e.*, buildings and historic districts) and below-grade (*i.e.*, archeological sites) resources. The Government is responsible for assessing effects to identified historic properties and for consulting with the State Historic Preservation Officer (SHPO), the Tribal Historic Preservation Officer (THPO), if applicable, any local Historic Preservation or Landmarks Commission, and other interested parties, if applicable, in accordance with the implementing regulations set forth at 36 C.F.R. part 800 (Protection of Historic Properties).
- B. An Offeror must allow the Government access to the offered Property to conduct studies in furtherance of the Section 106 compliance. This requires research and field surveys to assess the potential presence of historic properties that may be affected by construction activity, both above- and below-grade. Compliance also may require below-grade testing to determine the presence of archeological resources and possible artifact recovery, recordation and interpretation mitigation measures.
- C. Demolition or destruction of a historic property by an Offeror in anticipation of an award of a Government lease may disqualify the Offeror from further consideration.
- D. The Government reserves the right to reject any offer where documentation for the offered Property is inadequate or otherwise indicates preservation concerns or adverse effects to historic properties that cannot be minimized or reasonably mitigated, or where the level of NHPA analysis is more extensive than is acceptable to the Government.
- E. If the Government determines that the leasing action could affect historic property, the Offeror of any Property that the Government determines could affect historic property will be required to retain, at its sole cost and expense, the services of a preservation architect who meets or exceeds the *Secretary of the Interior's Professional Qualifications Standards for Historic Architecture*, as amended and annotated and previously published in the Code of Federal Regulations, 36 C.F.R. part 61, and the *GSA's Qualification Requirements for Preservation Architects and Other Specialists*. These standards are available at: [HTTPS://WWW.GSA.GOV/REAL-ESTATE/HISTORIC-PRESERVATION/HISTORIC-PRESERVATION-POLICY-TOOLS/](https://www.gsa.gov/real-estate/historic-preservation/historic-preservation-policy-tools/). The preservation architect will be responsible for developing preservation design solutions and project documentation required for review by the Government, the SHPO, the THPO, if applicable, and other consulting parties in accordance with Section 106. For Tenant Improvements and other tenant-driven alterations within an existing historic building, the preservation architect must develop context-sensitive design options consistent with the *Secretary of the Interior's Standards for the Treatment of Historic Properties*. Where new construction or exterior alterations, or both, are located within a historic district, may be visible from historic properties or may affect archeological resources, compliance may require tailoring the design of the improvements to be compatible with the surrounding area. Design review may require multiple revised submissions, depending on the complexity of the project and potential for adverse effects to historic properties, to respond to comments from the Government and the other consulting parties. Within GSA, the Regional Historic Preservation Officer is solely responsible for corresponding with the SHPO, the THPO, if applicable, and any other consulting party. All design costs and expenses relating to satisfying the requirements of this paragraph will be borne solely by the Offeror.

SECTION 3 HOW TO OFFER

3.01 GENERAL INSTRUCTIONS (JUN 2012)

Offeror shall prepare a complete offer, using the forms provided with this RLP, and submit the completed lease proposal package to the Government as indicated below.

3.02 RECEIPT OF LEASE PROPOSALS (OCT 2024)

A. Traditional method – E-mail.

1. Offeror is required to transmit its completed and organized lease proposal as an attachment to an email, which shall be sent to the LCO noted below (Melissa Brau, melissa.brau@va.gov).
2. Offeror's email shall include the following:
 - a. Cover Letter: Offeror shall provide their company name, address, telephone number, and identify the name and title of the individual signing on behalf of the Offeror.
 - b. Pricing Required Submittals: **See RLP 3.03 for further details*
 - I. Completed and signed Exhibit C.1 GSA 1364 Request for Lease Proposal
 - II. Completed and signed Exhibit C.2 GSA 1217 Lessor's Annual Cost Statement
 - III. Completed all tabs of Exhibit C.3 Tenant Improvement Unit List (must include labor hours and \$/hr for labor on each tab)
 - IV. Completed Exhibit B.2 Security Unit Price List for FSL 3
 - c. Non-Price Technical required Submittals:
 - I. Initial bottom of each page of Exhibit B.1 FSL 3 Security Requirements
 - II. Initial bottom of each page of Exhibit E.1 GSA 3517B General Clauses
 - III. Completed and signed GSA 12000 Pre-Lease Fire Protection and Life Safety Evaluation
 - IV. Evidence that proposed property meets Floodplain requirements.
 - V. Appropriate Seismic Safety Form completed properly.
 - VI. All required submittals according to RLP Section 3.06
 - d. Other Evaluation Factors- See RLP 4.04 and 4.07 for further details on what is required to be submitted as part of the proposal.
 - I. Offeror must submit within proposal a design concept narrative reflecting how their proposal plans to meet all aspects of Factor 1 "Quality of Site" (a-d), Factor 2 "Building and Design Conceptual Layout" (a-c), Factor 3 "Financial Requirement" (a), Factor 4 "Offeror's Design and Construction Teams' Experience and Qualifications" (a and b), and Factor 5 "Past Performance of Offeror" (a).
 - II. Past Performance of Offeror requires that the offeror has a minimum of Three (3) past performance references and must provide their contact information within their proposal.

3. In order to be considered for award, offers conforming to the requirements of the RLP shall be received in one of the following ways:

- a. No later than **4:30pm Central Time** on the date specified below at the following email address:

Date: January 30, 2026

Email Address: melissa.brau@va.gov

4. ~~Offers sent by United States mail shall be deemed late if delivered to the address of the office designated for receipt of offers after the date and time established for receipt of offers.~~
5. Offers transmitted through email shall be deemed late if received at the designated email address after the date and time established for receipt of offers unless it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one Working Day prior to the date specified for receipt of proposals. Offerors are encouraged to receive a confirmation of receipt email from the LCO as proof of receipt of offeror's proposal.
6. Offers delivered through any means not authorized by this RLP will be deemed unacceptable. File hosting services (Dropbox, Google Docs, etc..) shall not be used to deliver any portion of the proposal.

- B. There will be no public opening of offers, and all offers will be confidential until the Lease has been awarded. However, the Government may release proposals outside the Government such as to support contractors to assist in the evaluation of offers. Such Government contractors shall be required to protect the data from unauthorized disclosure.

3.03 PRICING TERMS (OCT 2022)

Offeror shall provide the following pricing information with its offer using the corresponding Exhibit attached hereto:

- A. **Exhibit C.2- GSA Form 1217, Lessor's Annual Cost Statement:** Offeror must complete all sections of the 1217 form. Offeror must sign the 1217 form at bottom of page 2. Instructions for how to complete the 1217 form can be found on page 3 of Exhibit C.2. If offeror does not fully complete and sign the GSA 1217 form, LCO may deem proposal non-responsive.
- B. **Exhibit C.1- GSA Form 1364, Proposal to Lease Space:** Complete all sections of the 1364, including, but not limited to:
1. **A fully serviced Lease rate (gross rate)** per ABOA and RSF, clearly itemizing the total Building shell rental, TI rate, Building Specific Amortized Capital (BSAC) rate, operating cost. Any costs associated with Parking must be part of the rental consideration.
 2. **Shell Rental Rate/Bldg. Improvements.** All improvements in the base Building, lobbies, common areas, and core areas shall be provided by the Lessor, at the Lessor's expense. This Building shell rental rate shall also include, but is not limited to, property financing (exclusive of TIs and BSAC), insurance, property taxes, management, profit, etc., for the building. The building shell rental rate shall also include all basic Building systems and common area buildout, including base Building lobbies, common areas, core areas, etc., exclusive of the ABOA Space offered as required in this RLP. Offeror is responsible for ensuring the total dollar amount listed on Line 33 of the GSA 1217 form is reflected within the offeror's shell rental rate.
 3. **The annual cost per ABOA and rentable square foot (RSF) for the cost of services and utilities.** This equals line 27 of GSA Form 1217, Lessor's Annual Cost Statement, divided by the Building size (shown on the top of both GSA Form 1364, Proposal to Lease Space, and Form 1217) for ABOA and RSF, respectively. Offeror is responsible for ensuring that all services and utilities stated as required within RLP, Lease, and all Exhibits are reflected on the GSA 1217 form.
 4. **Tenant Improvements.** This shall be all VA specific requirements stated within RLP, Lease, and all Exhibits. TI amount on GSA 1364 form shall match the total dollar amount listed on the Offeror's Tenant Improvement Unit Price List.
 5. **Building Specific Amortized Capital (BSAC) costs:** This shall be all security related requirements and the dollar amount for BSAC on the GSA 1364 form shall match the total dollar amount from the Offeror's Security Unit Price List for any security related requirement listed as BSAC and not TI or Shell.
 6. A shell rate per ABOA and RSF for that portion of the lease term extending beyond the Firm Term. The rate proposed for this portion of the term shall be the shell rate for the soft term of the lease, in which the VA shall have termination rights.
 7. An hourly overtime rate for overtime use of heating and cooling, and, if applicable, Adjustment for Reduced Services. Note. Refer to the Lease document for additional guidance.
 8. Adjustment for Vacant Leased Premises. Note. Refer to the Lease document for additional guidance.
 9. INTENTIONALLY DELETED
 10. Rent concessions being offered. Indicate either on the GSA Form 1364 Proposal to Lease Space or in separate correspondence.
 11. Compensation (expressed as a %) to Offeror's broker and/or representative arising from an agreement between the Offeror and the Offeror's representative, agent(s), broker(s), property manager, developer, employee, or any other agent or representative in connection with the Lease contemplated herein shall be entered. If GSA is using a Tenant Representative Broker, compensation (expressed as a %) to GSA's Broker reflecting the agreement between Offeror and GSA's Broker, shall be entered.
 12. Offeror MUST COMPLETE AND SIGN Section V of 1364 form.
 13. Offeror MUST COMPLETE Section VI- Addendum of 1364 form.
 14. If offeror does not complete and sign the GSA 1364 form, LCO may deem proposal non-responsive.
- C. **Exhibit C.3- Tenant Improvement Unit Price List:** This shall reflect all pricing and cost breakdown for materials and labor for all TI related requirements stated within the RLP, Lease, and all Exhibits attached hereto. Offeror MUST COMPLETE each tab within the excel spreadsheet and must provide cost breakdown that includes cost of materials and labor per each category for TI. If offeror does not provide the required cost breakdown on each tab, LCO may deem proposal non-responsive.
- D. **Exhibit B.2- Security Unit Price List:** This shall reflect all pricing and cost breakdown for all security related requirements that shall be considered BSAC. If offeror does not provide a completed and signed security unit price list with their proposal, LCO may deem proposal non-responsive.

3.04 BUDGET SCOREKEEPING; OPERATING LEASE TREATMENT (APR 2011)

The Government will award a Lease pursuant to this RLP only if the Lease will score as an operating lease under Office of Management and Budget Circular A-11, Appendix B. Only offers that are compliant with operating lease limitations will be eligible for award. Offerors are obligated to provide supporting documentation at the request of the LCO to facilitate the Government's determination in this regard.

3.05 PROSPECTUS LEASE (OCT 2022)

This RLP is subject to the Prospectus threshold set forth in 40 USC § 3307. The Government will award a Lease pursuant to this RLP only if the offered rental rate does not exceed the then current rent threshold. The current threshold is available from the LCO or at the GSA Web site, [HTTP://WWW.GSA.GOV](http://www.gsa.gov), using the keyword "prospectus."

3.06 ADDITIONAL SUBMITTALS (OCT 2024)

Offeror shall also submit with its offer the following **REQUIRED** documents:

1. Cover letter. Shall be a maximum two-page Cover Letter and shall include the name and address of the organization submitting the proposal, together with the name, address, e-mail address and telephone number of the contact person who has the authority to legally bind the Offeror and make representations. Relative to the Offeror's proposal and any resultant contract, for the Offeror. Site visits may be conducted of proposed locations. Provide Point of Contact information for coordination of site visits. Include the Unique Entity Identifier (UEI) of the offering entity.
2. Narrative Response to Evaluation Factors. Offers shall be organized with sections appropriately identified. Offerors are to propose how they intend to fulfill the requirements of this solicitation and how their total offer will meet the minimum needs of the specifications. The response should be concise and provide sufficient information to demonstrate the Offeror's capability to satisfactorily perform the objectives. See 4.05 of the Solicitation.
3. Plans, written narratives, design concept, renderings, calculations, parking, occupancy timetables, mechanical and electrical systems, and energy efficiency of the proposed building. (bookmark each of these sections i.e. mechanical narrative, mechanical design concepts, mechanical calculations, electrical narrative, electrical design concept etc.);
4. Construction Schedule
5. Evidence of compliance with local zoning laws or evidence of variance, if any, approved by the proper local authority;
6. Proof of Site Ownership or Control
7. Solicitation 36C25525R0004, Amendments and Clarifications
8. Form 3516, Solicitation Provisions
9. Form 3517B, General Clauses
10. Certification of Building Energy Performance
11. Small Business Subcontracting Plan (if applicable)
12. Agency Special Requirements (ASR)
13. Security Requirements
14. Seismic Form for high seismic area
15. Form 12000 Prelease Fire Protection and Life Safety Evaluation
16. Davis Bacon Wage Rates
17. Tier 1 Seismic Evaluation
18. Statement of commitment to seismically retrofit the building (if applicable)
19. Seismic construction schedule, concept design and specifications as described in Paragraph 2.03
20. Asbestos Certification
21. Energy Star Label, if determined to not be cost-effective, narrative required
22. Conditional Commitment of Funds- Satisfactory evidence of at least a conditional commitment of funds in an amount necessary to prepare the Space, including Shell, TI, and BSAC improvements. Such commitments shall be signed by an authorized bank officer, or other legally authorized financing official, and at a minimum shall state amount of loan, term in years, annual percentage rate, and length of loan commitment. Alternatively, if the Offeror is self-financing, Offeror must demonstrate, to the satisfaction of the LCO, that it has adequate financial resources to self-finance the necessary improvements, e.g., income statements, cash flow statements, balance sheets, three (3) months of bank statements showing sufficient on hand stable cash reserves to fund the improvements, letter from the entity's financial officer.
23. Provide evidence of certified SDVOSB status in the Vendor Information Pages database: <https://www.vip.vetbiz.va.gov>
24. FAR 52.204-24, Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment, as applicable.

3.07 TENANT IMPROVEMENTS INCLUDED IN OFFER (OCT 2020)

A. Tenant Improvement Turnkey Pricing.

An Agency Specific Requirements (ASR) package is provided with this RLP to all Offerors upon which to base their TI pricing. The Agency's specific requirements can be found in Exhibit A.1 "Agency Specific Requirements", Exhibit A.2 "Program for Design- Room Contents", Exhibit A.3 "Room Data Matrix", and Exhibit A.4 "Infrastructure Standard for Telecommunication Spaces". TIs are the systems, finishes, fixtures, equipment, signage, etc. that typically take Space from the "shell" condition to a finished, usable condition. All TIs required by the Government

for occupancy shall be performed by the successful Offeror as part of the rental consideration and all improvements shall meet the quality standards and requirements of this RLP and its attachments.

- B. The Tenant Improvements shall include all the Offeror's administrative costs, general contractor fees, subcontractor's profit and overhead costs, Offeror's Project Management fee, design costs, and other associated project fees necessary to prepare construction documents and to complete the TIs. It is the successful Offeror's responsibility to prepare all documentation (working/construction drawings, etc.) required to receive construction permits. NO COSTS ASSOCIATED WITH THE BUILDING SHELL SHALL BE INCLUDED IN THE TI PRICING.

3.08 ~~TURNKEY PRICING WITH DESIGN INTENT DRAWINGS PRIOR TO AWARD (OCT 2017)~~ INTENTIONALLY DELETED

3.09 SECURITY IMPROVEMENTS INCLUDED IN OFFER (OCT 2022)

- A. Building Specific Amortized Capital Pricing.

The BSAC shall include all the Offeror's administrative costs, general contractor fees, subcontractor's profit and overhead costs, Offeror's Project Management fee, design costs, and other associated project fees necessary to prepare construction documents and to complete the security countermeasures. It is the successful Offeror's responsibility to prepare all documentation (working/construction drawings, etc.) required to receive construction permits. No costs associated with the building shell or TI shall be included in the BSAC pricing.

3.10 GREEN BUILDING RATING CERTIFICATION FOR TENANT INTERIORS (OCT 2023)

The project TIs shall incorporate any necessary design parameters for the Space to meet Leadership in Energy and Environmental Design for Interior Design and Construction requirements (at the minimum Certified level) into the Design Intent Drawings (DIDs), if applicable, or Construction Drawings.

The Lessor must coordinate TI and shell requirements as necessary to meet the certification.

The project TIs shall incorporate any necessary design parameters for the Space to meet Green Globes® for Sustainable Interiors requirements into the Design Intent Drawings (DIDs), if applicable, or Construction Drawings. The Lessor must coordinate TI and shell requirements (at the minimum One Green Globes level) as necessary to meet the certification.

The project TIs shall incorporate any necessary design parameters for the Space to meet Living Building Challenge for Building Interiors™ requirements into the Design Intent Drawings (DIDs), if applicable, or Construction Drawings. The Lessor must coordinate TI and shell requirements as necessary to meet the certification.

3.11 OPERATING COSTS REQUIREMENTS INCLUDED IN OFFER (JUN 2012)

The Government requires a fully serviced Lease as part of the rental consideration. The base for the operating costs adjustment will be established during negotiations based upon rentable SF. The proposed methodology for operating costs adjustment shall include all items specified in the attached Lease document. The minimum requirements for normal hours, utilities, and janitorial services are specified in the attached Lease document. The offer shall clearly state whether the rental is firm throughout the term of the Lease or if it is subject to annual adjustment of operating costs as indicated above. If operating costs will be subject to adjustment, those costs shall be specified in the proposal.

3.12 ~~UTILITIES SEPARATE FROM RENTAL / BUILDING OPERATING PLAN (JUN 2012)~~ INTENTIONALLY DELETED

SECTION 4 METHOD OF AWARD

4.01 NEGOTIATIONS (OCT 2023)

Negotiations may be conducted on behalf of the Government by the VA LCS/LCO or designated representative. When negotiations are conducted, VA will negotiate the rental price for the initial term, any renewal periods, and any other aspect of the offer as deemed necessary. The Offeror shall not enter into negotiations concerning the Space leased or to be leased with representatives of Federal agencies other than the LCO or their designee. The LCO or their designated representative will conduct oral or written negotiations with all Offerors that are within the competitive range. The competitive range will be established by the LCO based on cost or price and other factors (if any) that are stated in this RLP and will include all of the most highly rated proposals, unless the range is further reduced for purposes of efficiency. Offerors who are not included in the competitive range will be notified in writing via email.

All Offerors within the competitive range will be provided a reasonable opportunity to submit revisions to their initial offer including any cost or price, technical, or other revisions that may result from the negotiations. Negotiations will be closed with submission of final proposal revisions.

4.02 HUBZONE SMALL BUSINESS CONCERN PRICE PREFERENCE WAIVER (OCT 2023)

A HUBZone small business concern (SBC) Offeror may elect to waive the price evaluation preference provided in the "Award Based On Price" paragraph or the "Other Evaluation Factors" paragraph of the RLP by so indicating on the GSA Form 1364, Proposal to Lease Space. In such a case, no price evaluation preference shall apply to the evaluation of the HUBZone SBC.

4.03 ~~AWARD BASED ON PRICE (OCT 2023)~~ INTENTIONALLY DELETED

4.04 OTHER EVALUATION FACTORS (OCT 2023)

- A. The Lease will be awarded to the responsible Offeror whose offer conforms to the requirements of this RLP package and will be most advantageous to the Government, price and technical evaluation factors listed below considered. The best value tradeoff process permits tradeoffs among price and technical factors, allowing the Government to make an award to other than the lowest priced Offeror or other than the highest technically rated Offeror.
- B. The combination of factors below is **approximately equal in importance to price**. As proposals become more equal in price, their technical merit becomes more important. Likewise, as technical factors become more equalized, price becomes the most important component.
- C. The following evaluation factor(s) will be considered :

Factor 1 Quality of Space. Information should include building class, type, designation, parking lot layout, space allocation in proximity to the entrance of building, type, and quality of windows and provision for natural lighting and/or tenant lease space. Information should include information on Building Flexibility to accommodate VA's footprint/SF, suite location relative to building, construction, appearance, and quality of construction materials.

Factor 2 Accessibility: Information should include proximity to shopping, banks, public transportation, airport, food places, childcare, Flexibility of parking to location of Building, Access to major Highways/Streets/Visibility, Handicap Accessibility (ABAAS Compliant), and traffic flow and congestion of ingress/egress of property location and leases premises. Information should include commuter routes congestion to/from main thoroughfares connecting major cities to the offered location.

Factor 3 Financial Requirement. This factor considers the Offeror's ability to obtain financing to complete the work and will be evaluated in line with the information concerning "Financial Resources". Offeror must submit a financial commitment letter from bank or lender showing evidence of meeting financial commitment for tenant improvements.

Factor 4 Offeror's Design and Construction Teams' Experience & Qualifications

VA will evaluate the Offeror's Design and Construction Teams' experience and qualifications based on the following:

- a. **Design Team's Qualifications and Experience**. This factor considers the education, experience, knowledge, and expertise of key members of the Offeror's design team who will be assigned directly to the project. Provide 3 examples of project designs completed within the last five (5) years that are medical offices or equivalent for evaluation. Submittal documents must contain completion dates on each project being provided as examples.
- b. **Construction Team's Qualifications and Experience**. This factor considers the education, experience, knowledge, and expertise of key members of the Offeror's construction team who will be assigned directly to the project. Provide 3 examples of medical offices or similar construction completed within the last five (5) years for evaluation. Submittal documents must contain completion dates on each project being provided as examples.

****Offeror must submit the qualifications and experience for both their design team and construction team in SEPARATE documents in order for administrative ease and organization when conducting technical review. Offeror MUST state dates of project start to finish on each example provided for both of their teams being submitted based on requirements stated above. If not provided to these specifications, then proposal may be deemed non-responsive.***

Factor 5 Past Performance of Offeror

Past performance is a measure of the degree to which an offeror has 1) satisfied customers in the past, and 2) complied with federal, state, and local laws and regulations. The assessment of past performance will be subjective and based mainly on offeror reputations with customers and others. The Government may evaluate the performance data provided by offerors or obtained from other sources. Past performance assessments may be based on information such as the contracting officer and evaluator's knowledge of previous experience with the supply or service being acquired, customer surveys, or another reasonable basis. The assessment will consider quality of work, timeliness of performance, company and key personnel, customer satisfaction and business relations.

Identify relevant Federal, State, or Government contracts, along with private sector contracts for similar products that your company has had within the past three years specifically in healthcare management. This information shall include the company's name, contract number, contact person and telephone number. Provide description of any material legal proceedings against the Contractor by the Federal or State regulatory agencies that might impact a contract for these services.

Provide references, including names and telephone number of responsible individuals who would have firsthand knowledge of performance relative to the same type of service. Identify all Federal, State, and local Government and private contracts of similar scope, size, and complexity, square footage and description of building/campus layout. Information will also be considered regarding any significant subcontractors and key personnel records. NOTE: A minimum of three references should be provided.

*If an offeror does not have a minimum of three (3) past performance references received by the VA LCO as part of their proposal, then their proposal may be deemed non-responsive.

Factor 6 Availability: Lessor's proposed timetable with phases and/or milestones showing progression of build-out through completion.

- D. See FAR Clause 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns, as listed under the attached GSA 3517, General Clauses.
- E. If an offer contains terms modifying any Lease provision, the Government will not be under any obligation to award a Lease in response to that offer.

4.05 ~~EVALUATION FACTOR DESCRIPTIONS (OCT 2023)~~ INTENTIONALLY DELETED

4.06 ~~EVALUATION FACTOR MINIMUM STANDARDS (OCT 2023)~~ INTENTIONALLY DELETED

4.07 ~~EVALUATION FACTOR SUBMITTAL REQUIREMENTS (OCT 2023)~~

Factor 1 – Narrative and drawings/sketches describing the elements of your building design, suite location within the building, and quality of construction and proposed construction materials and finishes. Narrative describing the building class, safety and physical security features, parking lot design and location in reference to the building entrance.

Factor 2 – Narrative describing the accessibility to shopping, banking, public transportation, airport, food places, parking, childcare, access to major traffic routes, ADA compliance and traffic congestion. Include map/image identifying locations of amenities in reference to proposed leased space.

Factor 3 – Provide Proof of Financial Capability per requirements under Factor 3 "Financial Requirement".

Factor 4 –

Design Team Qualifications and Experience: Provide 3 examples of project designs completed by offeror's A/E/Design Team within the last five (5) years that are medical/clinical spaces or equivalent for evaluation. Submittal must include education, experience, knowledge, and expertise of key members of the Offeror's Design Team.

Construction Team: Provide 3 examples of medical/clinical spaces or similar construction completed within the last five (5) years for evaluation. Submittal must include education, experience, knowledge, and expertise of key members of the Offeror's Construction Team.

Factor 5- Lessor shall demonstrate past performance by identifying a minimum of three (3) references from whom contracts of similar scope, size and complexity are either ongoing or were completed within the past five years.

Factor 6- Narrative and project timeline detailing timeframe for build-out and Certificate of Occupancy.

4.08 ~~EVALUATION DOCUMENTATION REQUIREMENTS (OCT 2023)~~ INTENTIONALLY DELETED

4.09 ~~PRESENT VALUE PRICE EVALUATION (OCT 2024)~~

- A. If annual CPI adjustments in operating expenses are included, the Offeror shall be required to submit the offer with the total "gross" annual price per RSF and per ABOA SF and a breakout of the "base" price per RSF and ABOA SF for services and utilities (operating expenses) to be provided by the Lessor. The "gross" price shall include the "base" price. The base price per ABOA SF from which adjustments are made will be the base price for the term of the Lease, including any option periods.
- B. The Offeror must submit plans and any other information to demonstrate that the Rentable Space yields ABOA space within the required ABOA range. The Government will verify the amount of ABOA SF and will convert the rentable prices offered to ABOA prices, which will subsequently be used in the price evaluation.

C. Evaluation of offered prices will be based on the annual price per ABOA SF, including all required option periods. The Government will perform present value price evaluation by reducing the prices per ABOA SF to a composite annual ABOA SF price, as follows:

1. Parking and wareyard areas will be excluded from the total square footage but not from the price. For different types of space, the gross annual per ABOA SF price will be determined by dividing the total annual rental by the total ABOA square footage excluding these areas.
2. Free rent will be evaluated in the year in which it is offered. The gross annual price is adjusted to reflect free rent.
3. Prior to the discounting procedure below, the total dollar amount of the Commission Credit (if applicable) will be subtracted from the first year's gross annual rent, unless the provision of free rent causes the credit to apply against rent beyond the first year's term, in which case the Commission Credit will be allocated proportionately against the appropriate year's gross rent.
4. ~~Also as stated in the "Broker Commission and Commission Credit" paragraph, the amount of any commission paid to GSA's Broker will not be considered separately as part of this price evaluation since the value of the commission is subsumed in the gross rent rate.~~
5. If annual adjustments in operating expenses will not be made, the gross annual price, minus the Commission Credit (if applicable), will be discounted annually at 5 percent to yield a gross present value cost (PVC).
6. If annual adjustments in operating expenses will be made, the annual price, minus the Commission Credit (if applicable) and minus the base cost of operating expenses, will be discounted annually at 5 percent to yield net PVC. The operating expenses will be both escalated at 2.5 percent compounded annually and discounted annually at 5 percent, then added to the net PVC to yield the gross PVC.
7. To the gross PVC will be added:
 - a. For lease acquisitions where the Government is considering less than fully-serviced offers, the cost of Government-provided services (e.g., utilities, janitorial) not included in the rental escalated at 2.5 percent compounded annually and discounted annually at 5 percent.
 - b. The annualized (over the full term) cost of any items, which are to be reimbursed in a lump sum payment. (The cost of these items is present value; therefore, it will not be discounted.)
 - c. The annual price for parking to accommodate the minimum number of spaces required for government vehicles, if not included in the shell rent and charged separately. The price will be discounted annually at 5 percent.
 - d. The cost of relocation of furniture, telecommunications, replications costs, and other move-related costs, if applicable.
 - e. INTENTIONALLY DELETED
 - f. The annual cost of overtime HVAC based on the offered hourly overtime rate and an estimated usage of 0 hours of overtime HVAC per year for the Space. This cost will be discounted annually at 5 percent.
8. The sum of either sub-paragraphs 5 and 7 or sub-paragraphs 6 and 7, divided by the ABOA SF will be the present value cost per ABOA SF of the offer for price evaluation purposes.

4.10 AWARD (OCT 2024)

A. To document the agreement between the parties, the successful Offeror and the VA LCS/LCO will execute a Lease prepared by VA, which incorporates the agreement of the parties. The Lease shall consist of the following:

1. Lease No. 36C25525L0002 and any associated Lease amendments.
2. GSA 3517B, General Clauses.
3. The pertinent provisions of the offer.
4. Floor plans of the offered Space.
5. GSA 1364, Proposal to Lease Space
6. GSA 1217, Lessor's Annual Cost Statement (Operating Costs/Utilities)
7. Tenant Improvement Unit Cost Summary (TICS excel spreadsheet)
8. Security Unit Price List (BSAC)
9. DOL Wage Determination
10. Seismic Safety Form
11. GSA 12000 Prelease Fire Protection and Life Safety

B. The acceptance of the offer and award of the Lease by the Government occurs upon execution of the Lease by the LCO and mailing or otherwise furnishing written notification of the executed Lease to the successful Offeror.

SECTION 5 ADDITIONAL TERMS AND CONDITIONS

5.01 MODIFIED RLP PARAGRAPHS (OCT 2016)

The following paragraphs have been modified in this RLP:

1.02, 1.03, 1.04, 1.05, 1.06, 1.08, 1.10, 2.01, 2.03, 2.04, 2.07, 2.09, 3.02, 3.03, 3.07, 3.10, and 4.01

5.02 ~~SWING SPACE – RLP (OCT 2022)~~ INTENTIONALLY DELETED

5.03 REFERENCES TO GSA

Any references to “GSA” within the RLP document and Exhibits shall be understood to mean “VA.”

5.04 BUILDING CODES AND STANDARDS

The building will be designed, constructed, and maintained in accordance with the most current version of the codes and standards (including the following, but not limited to) at time of award:

All applicable State and Local Building Codes

The Joint Commission

The Facility Guidelines Institute Guidelines for Design and Construction of Health Care Facilities
NFPA 99: Health Care Facilities Code

Architectural Barriers Act (ABA) Accessibility Standards

In the absence of a State or Local Fire Code - NFPA 101: Life Safety Code

VA PG 18-14: Room Finishes, Door & Hardware Schedule – used to define room finish materials, door sizes and types and hardware functionality. References to VA specifications need not be followed.

VA Signage Design Guide

VA Infrastructure Standard for Telecommunication Spaces

All VA Design Guides/Manuals found on the VA TIL [DESIGN CRITERIA - OFFICE OF CONSTRUCTION & FACILITIES MANAGEMENT \(VA.GOV\)](#)